

Tentative Rulings for June 23, 2026 Department PS1

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 520 9376**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2503458	ONTIBEROS VS GENERAL MOTORS LLC	HEARING RE: MOTION FOR ATTORNEYS FEES BY ROLAND ONTIBEROS

Tentative Ruling: Under Civil Code section 1794, subdivision (d), “[i]f the buyer prevails in an action under [the Song-Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.”

The Song-Beverly Act contains a cost-shifting provision that expressly allows prevailing plaintiffs to recover their costs and expenses, including attorney fees. Civil Code §1794(d) provides: “If the buyer prevails in an action under [the Song-Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.”

In determining the reasonable amount of attorney fees, the court first determines a lodestar figure (time reasonably spent by each biller multiplied by an hourly rate that is reasonable for each biller.) (*Serrant v. Priest* (1977) 20 Cal.3d 25, 48.) In exercising its discretion, the Court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394; see also *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th at 1096 (factors considered in determining the reasonableness of a party’s attorney fees include the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given and the success or failure).) The court does not need expert testimony to determine the reasonable amount of a fee award. (*PLCM Group, supra*, 22 Cal.4th at 1095.)

The matter of reasonableness of a party’s attorney fees is within the sound discretion of the trial court. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Fee motions should be based on detailed time records. (*Crespin v. Shewry* (2004) 125 Cal.App.4th 259, 271.) The records should detail crucial information as the types of issues involved, services performed, numbers of hours, billing rates, etc. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559.) The court is then entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel’s declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.)

Plaintiff provides the following breakdown of the requested attorneys' fees:

<u>Biller (2025)</u>	<u>Total Time</u>	<u>Rate in \$</u>	<u>Total Amount in \$</u>
Kimberli Zazzi	47.0	\$500/hr	\$23,500
LaDawna Fleckenstein	3.3	\$500/hr	\$1,650
Paralegal costs		\$150	\$1,635
Wrap Up			\$4,000
		Total Fees	\$30,785
		Lodestar Enhancement	x1.1 (\$2,915)
		Costs	\$788.36
		Total Request	\$33,208.36

The starting point for every fee award is calculating an attorney's services by the time expended on the case. (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 815.)

GM challenges specific billing entries in light of Plaintiff initiating this lawsuit on May 2, 2025 and settling on December 22, 2025 with no motions before the court. The court shall award fees at \$500/hour for attorney Zazzi and Fleckenstein.

Mediation-Related Fees:

Plaintiff seeks 4 hours (\$2000) for mediation related fees on December 10, 2025. GM points out Plaintiff's own record describes the proceeding as a "block mediation held on 12/10/2025" involving five other cases. (Zazzi Decl., Exh. 5, 12/23/2025 ["Mailed out Mediator's check for payment for block mediation held on 12/10/2025"].) The court shall reduce the time to 1.5 hours.

Duplicate Entries and Administrative/Clerical Work:

GM points out attorney Zazzi demands compensation for 47 hours of the 50.3 attorney hours worked without regard to the nature of the work performed. These hours include routine administrative functions and clerical communications, which are unreasonable.

- April 25, 2025 to April 30, 2025: Zazzi billed 7.4 hours for the pre-litigation intake process even though Plaintiff was already a recurring client. Time reduced by 5.4 hours.
- July 11, 2025: Zazzi and a paralegal billed 0.2 hours each for reviewing and processing routine documents, including GM's Answer, a meet-and-confer letter, and a proposed stipulation and protective order. Zazzi's hours reduced by 0.2 hours.
- December 10, 2025 to January 13, 2026: Zazzi billed 5.5 hours handling settlement administration tasks herself while paralegals collectively billed only one hour during the same period. Most of Zazzi's tasks appear to be clerical in nature. Zazzi's hours reduced by 2.2 hours.

Attorney Fee Motion:

GM contends the claimed 10.7 hours devoted to drafting this motion is excessive. This is excessive. The court reduces by 6.7 hours. As for paralegal hours spent, no information was given about the paralegals' experiences and total hours. This is reduced to zero.

Multiplier:

The purpose of a fee enhancement is "primarily to compensate the attorney for prevailing party at a rate reflecting the risk of nonpayment in contingency cases as a class." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138.) "Fair market value" typically includes a premium for the risk of nonpayment or delay in payment of attorney fees. (*Id.* at 1138.) The instant matter is a non-complex routine lemon law action that settled in seven months. The Court did not hear motions. The parties were not required to undertake any trial preparation. Request for multiplier is DENIED.

Costs:

Defendant does not dispute the costs of \$788.36

Plaintiff seeks additional "wrap up fees" in the amount of \$4,000 but does not explain how this amount was calculated. The court awards for 1.5 hours at \$500/hour.

The court awards as below:

<u>Biller</u>	<u>Total Time</u>	<u>Rate</u>	<u>Total Amount in \$</u>
Kimberli Zazzi (20+ yrs)	32.5	\$500/hr	\$16,250
LaDawna Fleckenstein (17+ yrs)	3.3	\$500/hr	\$1650

Paralegal costs	0	\$150	\$0
Wrap Up	1.5	\$500	\$750
		Total Fees	\$18,650
		Lodestar Enhancement	\$0
		Costs	\$788.36
		Total Request	\$19,438.36

Motion for Attorney's Fees and Costs GRANTED in PART.

Award of \$18,650 in fees + \$788.36 costs for total award of \$19,438.36.

OSC re dismissal pursuant to settlement confirmed for 12.21.26. Case Management Conference is vacated.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2508295	LITTLE VS ROCKET TITLE INSURANCE	MOTION TO COMPEL: ANSWER/RESPONSE TO PRODUCTION OF DOCUMENTS MARCH 20.2026, SET ONE; AND FOR MONETARY SANCTIONS BY AUDREY LITTLE

Tentative Ruling: No tentative ruling, on court's own motion, the hearing is VACATED.

Plaintiff's motion seeks to compel Defendant Oaktree's written responses and document production. CCP § 2031.300 authorizes a motion to compel responses to requests for production of documents where none have been provided. No meet and confer is required. In general, where a party, who has been served with requests for production of documents fails to serve timely responses he/she "waives any objection to the interrogatory or request for admission including one based on privilege or on the protection for work product."

Here, Plaintiff declares that she served the RPDs on Oaktree on 3/20/26. (Dec. Little ¶ 3, Ex. "A".) She acknowledges that Oaktree's responses were due on 4/22/26 (adding two days for electronic service). (*Id.* ¶ 4.) Oaktree's counsel confirmed on 4/20/26 that responses were served that day. (*Id.* ¶ 5.) Plaintiff declares Oaktree "*did not serve a verified written response to the Demand on or before April 22, 2026.*" (*Id.* ¶¶ 6, 9.) She also declares that Oaktree did not serve responsive documents. (*Id.* ¶¶ 6, 10.) Also on 4/20/26, Oaktree's counsel transmitted to Plaintiff a 618-page PDF. (*Id.* ¶ 7, Ex. "C".) Plaintiff declares she sent a meet and confer letter by email, and additional emails were exchanged concerning the discovery. (*Id.* ¶¶ 11-15, Exs. "D" – "G".)

However, on 4/20/26, Oaktree's counsel, Jason E. Goldstein, served verified responses to Plaintiff's RPD. (Dec. Goldstein ¶ 5, Ex. "1".) This production was before the 4/22/26 deadline. It includes proper verified, written responses including objections, and a statement of compliance. (*Id.* Ex. "1".) Mr. Goldstein confirmed he provided Oaktree's response on 4/20/26. (*Id.* Ex. "3".)

Plaintiff asserts in her motion that she propounded 26 RPDs to Oaktree. However, in her Exhibit Binder, the demand contains only 14 RPDs. (Exh. Binder, Ex. "A".) In addition, Oaktree's verified, written responses contain only 7 responses. (Dec. Goldstein ¶ 5, Ex. "1".) Presumably this is in response to Plaintiff's First Demand for Inspection, Copying and Production of Documents that contains only 7 demands. (Dec. Goldstein ¶ 5, Ex. "3".) Thus, there is a discrepancy as to what RPDs are actually outstanding, if any.

Additionally, in the Reply, Plaintiff seems to be acknowledging that Oaktree's verified, written responses were provided but, she argues that *further* responses are necessary. To the extent that this motion seeks further responses, Plaintiff made the wrong motion. A motion to compel *further* responses requires a meet and confer declaration, and a separate statement. (see CCP § 2031.310.) Plaintiff did engage in some meet and confer efforts, but she only provided Oaktree with a few days to serve supplemental responses. (Exh. Binder, Ex. "D".) And, no separate statement was filed.

For the above reasons the motion to compel is VACATED.

Plaintiff's Request for Sanctions is DENIED.

Defendant's Request for Sanctions is DENIED.

The parties are instructed that no FURTHER discovery motions shall be filed or heard without conducting an informal discovery conference. This requirement includes any reserved motions currently pending confirmation. The parties will be given instructions on how to log onto zoom for the IDC.

Court ordered Informal Discovery Conference is set for 7.02.26 for 11 a.m.

The OSC re 3rd Amended Complaint is confirmed for 7.02.26 for 11 a.m. (This is changed from the previous time frame of 8:30 a.m.)

3.

CASE #	CASE NAME	HEARING NAME
CVPS2509083	POLETIS VS PATTERSON	MOTION TO STRIKE COMPLAINT OF ANDREW POLETIS BY PAUL EDWARD PATTERSON

Tentative Ruling: No tentative ruling. Motion to Strike is continued.

The hearing on the motion to strike is continued to 7.31.26. The parties are ordered to ***meet and confer via in person, videoconference or phone*** for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the motion to strike. As part of the meet and confer process, Defendant shall identify the specific causes of action that it believes are subject to the motion and identify

with legal support the basis of the deficiencies. Plaintiffs shall provide legal support for their position that the pleading is legally sufficient or, in the alternative, how the complaint may be amended to cure any legal insufficiency.

After meeting and conferring, the parties shall 10 days before the continued hearing date set above do one of the following:

- (1) Defendant vacate the hearing on the motion to strike;
- (2) The Parties file with the court a joint declaration stating the parties have agreed that Plaintiff will file an amended complaint before the date set forth above; or
- (3) The Parties file with the court a joint declaration stating the means by which the parties met and conferred and identifying the specific objections in the motion and supporting memorandum of points and authorities that the parties were unable to resolve. (CCP §430.41(a)(3), CCP §435.5(a)(3).)

The court will not accept further briefing.

Case Management Conference continued to 7.31.26. Parties are to not submit further case management statements prior to the next court date.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2604068	LIGHTHOUSE HOSPICE CARE, LLC VS ADEYEMI	HEARING ON PETITION RE: ARBITRATION AWARD

Tentative Ruling: No tentative ruling. Hearing was continued to 9.01.26 for proof of service.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2504070	LIBERTAD VS COUNTY OF RIVERSIDE	DEMURRER ON 1ST AMENDED COMPLAINT OF URIMARE LIBERTAD BY COUNTY OF RIVERSIDE, DAVID MCMILLAN, TRANSPORTATION AND LAND MANAGEMENT AGENCY (TLMA), RIVERSIDE COUNTY FIRE DEPARTMENT / CAL FIRE, RIVERSIDE COUNTY CODE ENFORCEMENT

Tentative Ruling: A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (C.C.P. § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions

or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

In the present case, Plaintiffs assert causes of action for negligence, premises liability, dangerous condition of public property, statutory violations, and declaratory relief, all based on the same facts: that Defendants failed to maintain, inspect, and safely manage Mt. Edna Road, a fire access route, which caused physical injury, property loss, and emergency response failure during multiple fire events. (FAC at ¶¶ 1-4, 15-16, 35-73.)

“In California, all government tort liability must be based on statute.” (*Becerra v. County of Santa Cruz* (1998) 68 Cal.App.4th 1450, 1457; Gov. Code § 815(a) [a public entity is not liable for any injury “[e]xcept as otherwise provided by statute”]; *Green Valley Landowners Association v. City of Vallejo* (2015) 241 Cal.App.4th 425, 441-442 [there is no common law tort liability for public entities—only statutory]; *Lundeen Coatings Corp. v. Department of Water & Power* (1991) 232 Cal.App.3d 816, 832 [“Tort claims may not be maintained against a public entity unless they are based on a statute or are required by the federal or state constitutions.”]; *Duarte v. San Jose* (1980) 100 Cal.App.3d 648; *Ladd v. County of San Mateo* (1996), 12 Cal 4th 913.) In addition, no statute permits a finding of liability based on “equitable principles.” (*Tuthill v City of San Buenaventura* (2014) 223 Cal.App.4th 1081, 1089.) Since all liability under the Government Claims Act is statutory, each tort cause of action must be specifically alleged and every element of the statutory basis of liability must be set forth. (*Zipper v. County of Santa Clara* (2005) 133 Cal.App.4th 1013, 1020; *Searcy v. Hemet Unified School Dist.* (1986) 177 Cal. App. 3d 792, 802.)

In the present case, Plaintiffs cite no statutes upon which Moving Defendants’ liability is based. The only potential statutory basis for County’s liability is Gov. Code § 835, which sets out the exclusive conditions under which a public entity may be held directly liable for injuries caused by a “dangerous condition” of public property. (*Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1132.) A public entity may be held liable only if all of the following elements are satisfied: (1) the condition on its property must be one that creates a substantial risk of injury when the property or adjacent property is used with due care in a reasonably foreseeable manner; (2) the condition must have existed at the time of the injury; (3) the injury must have been “proximately caused” by the condition; (4) the condition must have created a “reasonably foreseeable” risk of the kind of injury suffered; and (5) either (i) the condition must have been created by a negligent or wrongful act or omission of an employee within the scope of his or her public employment, or (ii) the entity must have had “actual or constructive notice” of the condition sufficiently before the injury to have taken measures to protect against the risk involved. (Gov. Code §§ 830(a), 835; *City of Los Angeles v. Superior Court* (2021) 62 Cal.App.5th 129, 139.)

Here, there are no allegations in the FAC that County owns or is responsible for either Mt. Edna Road or Plaintiffs’ property. Additionally, Moving Defendants provide evidence that is the proper subject of judicial notice showing that Mt. Edna Road is not a County Road. (RFJN, Ex. B.) As Plaintiffs fail to allege facts showing any dangerous condition on County property, they fail to allege sufficient facts to state a cause of action for dangerous condition of public property. (Gov. Code §§ 830(a), 835; *Zelig, supra*, 27 Cal.4th at 1132; *City of Los Angeles, supra*, 62 Cal.App.5th at 139.) Plaintiffs also fail to allege any facts supporting McMillan’s individual liability for any of the damages suffered.

Defendants' Request for Judicial Notice as to Exhibits A, B, and C GRANTED. Request for Judicial Notice for Exhibit D is DENIED.

Demurrer as to the 1st, 2nd, 3rd, 4th and 5th Causes of Action by Defendants County of Riverside, Riverside County Transportation and Land Management Agency, Riverside County Code Enforcement, County Fire Department/Calfire and David McMillan "the County" is SUSTAINED, with leave to amend.

Plaintiffs to file an amended complaint within 15 days.

The Case Management Conference is continued to 8.26.26. An Order to Show Cause re Default of Defendant High Valleys Water District 47781 shall be set for the same date.